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No. 19–579. *BOATENG v. BP, P. L. C., ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 779 Fed. Appx. 217.

No. 19–585. *STOLTZ v. VIRGINIA*. Sup. Ct. Va. Certiorari denied. Reported below: 297 Va. 529, 831 S. E. 2d 164.

No. 19–594. *THIAM v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 934 F. 3d 89.

No. 19–612. *ABPIKAR v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–613. *W&T OFFSHORE, INC. v. APACHE DEEPWATER, L. L. C.* C. A. 5th Cir. Certiorari denied. Reported below: 930 F. 3d 647.

No. 19–5391. *MCCARTHAN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–5643. *WRIGHT v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 913 F. 3d 364.

No. 19–5693. *HUTCHINSON v. LOUISIANA*. Ct. App. La., 3d Cir. Certiorari denied. Reported below: 2018–445 (La. App. 3 Cir. 12/12/18), 261 So. 3d 927.

No. 19–6090. *WELLS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 885.

No. 19–6091. *TONEY v. DICKSON ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–6092. *PRATHER v. GILMORE, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GREENE, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–6096. *SIMMONS v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 19–6097. *REYNOLDS v. VIRGINIA ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 151.

No. 19–6098. *ROSADO-SANCHEZ v. PUERTO RICO DEPARTMENT OF EDUCATION ET AL.* C. A. 1st Cir. Certiorari denied.

No. 19–6099. *STAFFORD v. NEW JERSEY*. Super. Ct. N. J., App. Div. Certiorari denied.

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No. 19–6103. *POPAL v. NEW YORK*. Ct. App. N. Y. Certiorari denied. Reported below: 34 N. Y. 3d 936, 133 N. E. 3d 422.

No. 19–6105. *PERRY v. JPMORGAN CHASE BANK, N. A., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 734 Fed. Appx. 533.

No. 19–6106. *JOHNSON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–6118. *BRENT v. WORKMAN*. Ct. App. Mich. Certiorari denied.

No. 19–6122. *STEVENSON v. WOODS, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6126. *YOUSSEF v. SCHUETTE ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–6129. *GUZMAN PENA v. BARR, ATTORNEY GENERAL*. C. A. 2d Cir. Certiorari denied.

No. 19–6130. *FISHER v. MERMELSTEIN ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–6136. *BIAS v. MARTIN, WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 779 Fed. Appx. 549.

No. 19–6139. *STEVENSON v. HORTON, WARDEN*. Ct. App. Mich. Certiorari denied.

No. 19–6145. *SMITH v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–6147. *SARDAKOWSKI v. ROMERO, WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 979.

No. 19–6153. *NELSON v. BURT, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6161. *CONNOLLY v. FLORIDA*. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 288 So. 3d 638.

No. 19–6163. *OLIVARES POLANCO v. LINCOLN COMMUNITY HEALTHCARE*. C. A. 4th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 131.

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No. 19–6165. *DAVIS v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–6166. *STRANDBERG v. PALMER, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6168. *ROBINSON v. BURTON, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6171. *SANCHEZ-RODRIGUEZ v. LOUISIANA*. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 2018–0578 (La. App. 4 Cir. 12/12/18).

No. 19–6174. *LEE v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 19–6175. *K. S. v. CONTRA COSTA COUNTY CHILDREN AND FAMILY SERVICES BUREAU*. Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied.

No. 19–6180. *FARNUM v. FRAUENHEIM, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 680.

No. 19–6181. *ROBERTSON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 763 Fed. Appx. 378.

No. 19–6183. *CHATMAN v. FLORIDA*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 254 So. 3d 328.

No. 19–6184. *JOHNSON v. SEVERSON, WARDEN, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–6192. *JUNIOUS v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 201 A. 3d 895.

No. 19–6194. *SNEED v. WETZEL, SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–6203. *BARRASS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 766 Fed. Appx. 760.

No. 19–6204. *BIELA v. NEVADA*. Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 615, 439 P. 3d 396.

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No. 19–6206. *DAVENPORT v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Fla. Certiorari denied.

No. 19–6210. *JACKSON v. NAGY, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6212. *EDWARDS v. ATTORNEY GRIEVANCE COMMISSION*. Sup. Ct. Mich. Certiorari denied. Reported below: 504 Mich. 949, 931 N. W. 2d 333.

No. 19–6215. *HAYNES v. ASSETS PROTECTION, INC.* Super. Ct. Pa. Certiorari denied. Reported below: 200 A. 3d 558.

No. 19–6216. *HERRING v. MCEWEN, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–6218. *BOONE v. MARYLAND*. Ct. Sp. App. Md. Certiorari denied. Reported below: 227 Md. App. 778.

No. 19–6219. *C. B. v. FISCHGRUND*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 264 So. 3d 152.

No. 19–6222. *HEARNS v. HARRINGTON, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–6223. *HARRIS v. BRACY, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6226. *ACKBAR v. CONNOR ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 141.

No. 19–6235. *ERSKINE v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied. Reported below: 7 Cal. 5th 279, 440 P. 3d 1112.

No. 19–6246. *JONES v. WISCONSIN*. Ct. App. Wis. Certiorari denied.

No. 19–6260. *CROSS v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 277 So. 3d 94.

No. 19–6261. *MARION v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied.

No. 19–6263. *VELASQUEZ v. UTAH ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 420.

No. 19–6274. *KOVALEV v. CITY OF PHILADELPHIA, PENNSYLVANIA, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 775 Fed. Appx. 72.

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No. 19–6299. *LOPEZ v. STERLING CORRECTIONAL FACILITY ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 91.

No. 19–6302. *DOUGLAS v. GILBERT, SUPERINTENDENT, STAFFORD CREEK CORRECTIONS CENTER.* C. A. 9th Cir. Certiorari denied.

No. 19–6303. *COOPER v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 926 F. 3d 718.

No. 19–6323. *TAFFARO v. NEW JERSEY.* Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–6344. *ALTSCHULER v. FLORIDA.* Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 277 So. 3d 109.

No. 19–6350. *DOBSON-EL v. MICHIGAN.* Sup. Ct. Mich. Certiorari denied. Reported below: 504 Mich. 948, 931 N. W. 2d 307.

No. 19–6351. *ELKINGTON v. CLARK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–6366. *CURTISS v. NORTH DAKOTA.* Sup. Ct. N. D. Certiorari denied. Reported below: 2019 ND 120, 926 N. W. 2d 707.

No. 19–6367. *KEISER v. FOXWELL, WARDEN, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 740.

No. 19–6371. *JEFFERSON v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION, ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–6380. *BEVERLY v. BURT, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 19–6383. *KESOYAN v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 576.

No. 19–6385. *GRENNING v. KEY, SUPERINTENDENT, AIRWAY HEIGHTS CORRECTIONS CENTER.* C. A. 9th Cir. Certiorari denied.

No. 19–6390. *COLLINS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

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No. 19–6391. *CHIN v. CAPOZZA*, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FAYETTE, ET AL. C. A. 3d Cir. Certiorari denied.

No. 19–6392. *EVERS v. FOSTER*, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 19–6394. *VILLAFANA v. PADRICK*. C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 314.

No. 19–6397. *GOMEZ-AGUILAR v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 412.

No. 19–6400. *WAZNEY v. JPMORGAN CHASE BANK*, N. A. Sup. Ct. S. C. Certiorari denied.

No. 19–6404. *CURTIS v. HOOKS*, SECRETARY, NORTH CAROLINA DEPARTMENT OF PUBLIC SAFETY. C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 752.

No. 19–6408. *STREGE v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6415. *NAVA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 190.

No. 19–6418. *MORRIS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6420. *HEATH v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 778 Fed. Appx. 170.

No. 19–6421. *FOX v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 926 F. 3d 1275.

No. 19–6423. *UHURU v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 932 F. 3d 242.

No. 19–6424. *STOKES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 932 F. 3d 242.

No. 19–6433. *TORRES v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 497.

No. 19–6436. *PADMANABHAN v. DRUG ENFORCEMENT ADMINISTRATION*. C. A. D. C. Cir. Certiorari denied. Reported below: 762 Fed. Appx. 6.

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No. 19–6444. *HARRIS v. MOYER, SECRETARY, MARYLAND DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONAL SERVICES, ET AL.* C. A. 4th Cir. Certiorari denied.

No. 19–6445. *COX v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 527.

No. 19–6448. *DOOR v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 520.

No. 19–6450. *MAHMOUD v. TEXAS.* Ct. App. Tex., 9th Dist. Certiorari denied.

No. 19–6456. *BAGGETT v. SPEARMAN, WARDEN.* C. A. 9th Cir. Certiorari denied.

No. 19–6461. *COLLINS v. MARYLAND.* Ct. Sp. App. Md. Certiorari denied. Reported below: 240 Md. App. 726.

No. 19–6471. *LOZANO-PEREZ v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 459.

No. 19–6474. *TANK v. MICHIGAN.* Ct. App. Mich. Certiorari denied.

No. 19–6476. *BLUNT v. CAMPBELL, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 19–6478. *GARBA ET AL. v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 923 F. 3d 565 and 770 Fed. Appx. 342.

No. 19–6481. *ROTTE v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–6485. *STEVENSON v. UNITED STATES.* C. A. 6th Cir. Certiorari denied.

No. 19–6486. *BANGIYEV v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 328.

No. 19–6487. *DONAHUE v. PENNSYLVANIA.* Sup. Ct. Pa. Certiorari denied.

No. 19–6489. *WALLACE v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 223.

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No. 19–6490. *AL-MAQABLAH v. KENTUCKY*. Cir. Ct. Trimble County, Ky. Certiorari denied.

No. 19–6491. *SHAFFER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 404.

No. 19–6494. *STATEN v. D. R. HORTON INC.* C. A. 11th Cir. Certiorari denied.

No. 19–6497. *MORILLO-CRUZ v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 774 Fed. Appx. 103.

No. 19–6503. *MORENO-GARCIA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 218.

No. 19–6505. *INGRAM v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 932 F. 3d 1084.

No. 19–6509. *GAUDET v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 933 F. 3d 11.

No. 19–6511. *DEL CARPIO FRESCAS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 932 F. 3d 324.

No. 19–6515. *ANDERSON v. JANSSEN, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 19–6525. *BARNES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 62.

No. 19–6527. *VALDES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6529. *TYSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 154.

No. 19–6530. *WILLIAMS v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 19–6533. *BASEY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 497.

No. 19–6538. *GRIFFIN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 881.

No. 19–6539. *HAIZLIP v. VALLIERE*. C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 157.

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No. 19–6540. *GRANT v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 412.

No. 19–6541. *FORTES v. TEXAS DEPARTMENT OF FAMILY AND PROTECTIVE SERVICES ET AL.* Ct. App. Tex., 1st Dist. Certiorari denied.

No. 19–6547. *STERLING v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 763 Fed. Appx. 63.

No. 19–6549. *SALGADO v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 933 F. 3d 20.

No. 19–6550. *GIESEKE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6551. *AHO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 779 Fed. Appx. 613.

No. 19–6552. *ATKINSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 164.

No. 19–6554. *LEAL v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 933 F. 3d 426.

No. 19–6555. *JOHNSON v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 776 Fed. Appx. 72.

No. 19–6557. *NYGREN v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 933 F. 3d 76.

No. 19–6560. *LUCIO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 348.

No. 19–6569. *CARRAWAY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 251.

No. 19–6571. *ILLARRAMENDI v. CARNEY ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 768 Fed. Appx. 88.

No. 19–6572. *HILLS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–6573. *GONZALEZ v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–6576. *REED v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 305.

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No. 19–6583. *KILLEN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 567.

No. 19–6584. *WILLIAMS v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 787 Fed. Appx. 8.

No. 19–6587. *HELGUERA-DEL RIO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 838.

No. 19–6597. *GALITSA v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 224.

No. 18–8341. *SCHEXNAYDER v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

In 2007, a former employee of Louisiana’s Fifth Circuit Court of Appeal shot himself in his courthouse office. The employee left a suicide note claiming that he had been tormented by his involvement in that Court of Appeal’s secret, 13-year policy of summarily denying *pro se* appeals. Purpura, Fifth Circuit Ordered To Review Appeals; Due Process Denied, Supreme Court Says, New Orleans, La., Times-Picayune, Oct. 7, 2008, p. B1. The note reportedly stated that no judge had reviewed a habeas application filed by a *pro se* inmate during that time; instead, courthouse staff prepared rulings that judges signed “without so much as a glance” at the underlying petitions or any review of the applications’ merits. *Johnson v. Parish of Jefferson*, 2009 WL 1808718, *4 (ED La., June 19, 2009).

In response to this revelation, the Louisiana Supreme Court approved a procedure whereby a three-judge panel—drawn from the same pool of Court of Appeal judges who had allegedly summarily rejected *pro se* filings—would re-review hundreds of *pro se* submissions that had been dismissed without consideration. *State v. Cordero*, 2008–1717 (La. 10/3/08), 993 So. 2d 203. Justice John L. Weimer dissented from that decision, arguing that the cases should be assigned to judges sitting on other courts of appeal to “avoid any appearance of impropriety.” *Id.*, at 214.

Petitioner’s case, which primarily challenges the effectiveness of his counsel and various trial errors, was one of the many matters swept up in the Louisiana Court of Appeal’s original review process and the re-review remedy ordered by the Louisi-

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ana Supreme Court. After the state courts dismissed his claims, petitioner filed for federal habeas relief. He argued that the Louisiana courts did not fairly review his filings on the merits—either originally or through the re-review process—and so he was entitled to *de novo* federal review without any of the deference ordinarily afforded to state-court rulings under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA). The Magistrate Judge dismissed the habeas petition after applying AEDPA deference.

Petitioner, who was *pro se* during various stages of the lower court proceedings, did not clearly set forth his claim that he was entitled to habeas review without AEDPA deference when he sought a certificate of appealability from the District Court and, later, the United States Court of Appeals for the Fifth Circuit. Accordingly, the Court of Appeals was not fairly presented with the opportunity to resolve the issue that petitioner now presents to this Court. For this reason, I do not dissent from this Court's denial of certiorari. The re-review procedure adopted by the Louisiana courts, however, raises serious due process concerns. I expect that lower federal courts will examine the issue of what deference is due to these decisions when it is properly raised.

No. 18–8862. *WHITE v. LOUISIANA*. Ct. App. La., 1st Cir. Motion of National Association of Criminal Defense Lawyers for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 2017–1256 (La. App. 1 Cir. 2/16/18), 243 So. 3d 12.

No. 18–9261. *COTTIER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 908 F. 3d 1141.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

For his alleged role in a group beating, petitioner Calmer Cottier was charged with, among other things, second-degree murder by an Indian in Indian country. Two other participants accepted plea deals with the Government; as part of their pleas, the participants signed statements—known as factual-basis statements—that implicated Cottier in the murder. A federal prosecutor also signed those inculpatory statements to vouch for their veracity. Then, that same prosecutor offered those same incriminating statements as evidence at Cottier's trial.

On appeal, the Court of Appeals for the Eighth Circuit observed that the court in which Cottier was prosecuted “routinely”

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sends unredacted factual-basis statements into the jury room. 908 F. 3d 1141, 1149 (2018). I agree with the Eighth Circuit that this practice is “troubling.” *Ibid.* By presenting the jury with a factual-basis statement signed by the Government, the prosecution improperly expresses its “‘personal belief’” in the truth of the witness’ statements—a stamp of approval, an assurance from the Government itself, that the witness is to be believed. *United States v. Young*, 470 U. S. 1, 7–8 (1985). In this case, however, Cottier’s attorney did not object to the statements’ admission and used them as part of Cottier’s defense. For that reason and others expressed by the Eighth Circuit in affirming Cottier’s convictions, I do not dissent from the denial of certiorari but instead echo its admonition that the admission of such statements “is not a favored practice.” 908 F. 3d, at 1149.

No. 19–257. CALIFORNIA TROUT ET AL. *v.* HOOPA VALLEY TRIBE ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 913 F. 3d 1099.

No. 19–426. PENNSYLVANIA *v.* HICKS. Sup. Ct. Pa. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 652 Pa. 353, 208 A. 3d 916.

No. 19–432. ALL AMERICAN CHECK CASHING, INC., ET AL. *v.* CONSUMER FINANCIAL PROTECTION BUREAU. C. A. 5th Cir. Certiorari before judgment denied.

No. 19–470. JONES *v.* DEPARTMENT OF JUSTICE ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition.

No. 19–560. NICASSIO *v.* VIACOM INTERNATIONAL, INC., ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE BREYER took no part in the consideration or decision of this petition. Reported below: 776 Fed. Appx. 761.

Rehearing Denied

No. 18–9014. MCNEIL *v.* NEBRASKA ET AL., 589 U. S. 932;

No. 18–9017. MYLES *v.* UNITED STATES, 587 U. S. 1045;

No. 18–9090. HOWARD *v.* SAN DIEGO COUNTY COUNSEL ET AL., 589 U. S. 934;

No. 18–9190. SMITH *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 589 U. S. 938;

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- No. 18–9209. *H. F. v. BOARD OF EDUCATION OF THE TOWNSHIP OF TEANECK*, 589 U. S. 938;
- No. 18–9254. *RUBIN v. SANCHEZ ET AL.*, 589 U. S. 939;
- No. 18–9283. *RUSSELL v. FIRST RESOLUTION INVESTMENT CORP.*, 589 U. S. 940;
- No. 18–9354. *REDDICK v. UNITED STATES*, 589 U. S. 943;
- No. 18–9374. *WALTON v. RAY, WARDEN*, 589 U. S. 944;
- No. 18–9390. *ARANOFF v. ARANOFF*, 589 U. S. 944;
- No. 18–9426. *DURISO v. WEST GULF MARITIME ASSN. ET AL.*, 589 U. S. 946;
- No. 18–9631. *CAMPBELL v. UNITED STATES*, 589 U. S. 957;
- No. 18–9709. *WALKER v. UNITED STATES*, 589 U. S. 960;
- No. 18–9713. *BRENDE v. YOUNG, WARDEN, ET AL.*, 589 U. S. 961;
- No. 18–9800. *ADAMS v. UNITED STATES*, 589 U. S. 965;
- No. 19–163. *NORTON v. COLGATE PALMOLIVE Co.*, 589 U. S. 1016;
- No. 19–174. *RICH, REPRESENTATIVE FOR DEPUIS-MAYS, AN INCAPACITATED PERSON v. PALKO ET AL.*, 589 U. S. 1016;
- No. 19–215. *NEVELS v. PIGGLY WIGGLY CORP. ET AL.*, 589 U. S. 1034;
- No. 19–261. *WALTNER ET AL. v. COMMISSIONER OF INTERNAL REVENUE*, 589 U. S. 1017;
- No. 19–262. *XIAO-YING YU v. NEALL, SECRETARY, MARYLAND DEPARTMENT OF HEALTH, ET AL.*, 589 U. S. 1034;
- No. 19–323. *SCHNEIDER v. COMMISSIONER OF INTERNAL REVENUE*, 589 U. S. 1018;
- No. 19–5040. *LU v. STANFORD UNIVERSITY*, 589 U. S. 979;
- No. 19–5047. *TOOLE v. WILKIE, SECRETARY OF VETERANS AFFAIRS, ET AL.*, 589 U. S. 979;
- No. 19–5059. *VIERA v. FLORIDA*, 589 U. S. 980;
- No. 19–5066. *DONGARRA v. UNITED STATES*, 589 U. S. 980;
- No. 19–5072. *BRIDGES v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U. S. 981;
- No. 19–5090. *DU JU v. WASHINGTON ET AL.*, 589 U. S. 982;
- No. 19–5156. *LOGAN v. TOWN OF WINDSOR, NEW YORK, ET AL.*, 589 U. S. 986;
- No. 19–5179. *PATTISHALL v. CERF ET AL.*, 589 U. S. 987;
- No. 19–5190. *WILLIAMS v. NATIONAL RAILROAD PASSENGER CORPORATION ET AL.*, 589 U. S. 988;

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- No. 19–5200. *IN RE ROMAN*, 589 U. S. 914;
No. 19–5211. *ANYANWU v. BARR, ATTORNEY GENERAL*, 589 U. S. 989;
No. 19–5225. *IN RE BRUNSON*, 589 U. S. 914;
No. 19–5265. *SCHREIBER v. LUDWICK ET AL.*, 589 U. S. 991;
No. 19–5313. *KAHLOW v. FLORIDA*, 589 U. S. 993;
No. 19–5413. *ROONEY v. GEORGIA*, 589 U. S. 1018;
No. 19–5510. *FORTUNE v. VIRGINIA*, 589 U. S. 1001;
No. 19–5587. *IN RE SPENCE*, 589 U. S. 914;
No. 19–5657. *ROGERO ET AL. v. AZAR, SECRETARY OF HEALTH AND HUMAN SERVICES*, 589 U. S. 1023;
No. 19–5664. *SHEPPARD v. TEXAS* (two judgments), 589 U. S. 1036;
No. 19–5756. *IN RE BRYANT*, 589 U. S. 914;
No. 19–5816. *MAALOUF v. PRAETORIAN INSURANCE CO.*, 589 U. S. 1026;
No. 19–5822. *TUTTLE v. UNITED STATES*, 589 U. S. 1026; and
No. 19–5931. *ALLEN v. PENNSYLVANIA*, 589 U. S. 1029. Petitions for rehearing denied.

DECEMBER 10, 2019

Dismissal Under Rule 46

No. 19–221. *VALENT v. SAUL, COMMISSIONER OF SOCIAL SECURITY*. C. A. 6th Cir. Certiorari dismissed under this Court's Rule 46.1. Reported below: 918 F. 3d 516.

DECEMBER 11, 2019

Certiorari Denied

No. 19–6875 (19A639). *RUNNELS v. TEXAS*. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

DECEMBER 13, 2019

Certiorari Granted

No. 18–9526. *MCGIRT v. OKLAHOMA*. Ct. Crim. App. Okla. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted.

No. 19–177. *AGENCY FOR INTERNATIONAL DEVELOPMENT ET AL. v. ALLIANCE FOR OPEN SOCIETY INTERNATIONAL, INC.*,

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ET AL. C. A. 2d Cir. Certiorari granted. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 911 F. 3d 104.

No. 19–635. TRUMP *v.* VANCE, DISTRICT ATTORNEY OF THE COUNTY OF NEW YORK, ET AL. C. A. 2d Cir. Certiorari granted. Case will be set for argument in the March 2020 argument session. Reported below: 941 F. 3d 631.

No. 19–715. TRUMP ET AL. *v.* MAZARS USA, LLP, ET AL. C. A. D. C. Cir.; and

No. 19–760 (19A640). TRUMP ET AL. *v.* DEUTSCHE BANK AG ET AL. C. A. 2d Cir. Certiorari in No. 19–715 granted. Application (19A640) for stay, presented to JUSTICE GINSBURG, and by her referred to the Court, granted, and it is ordered that the mandate of the United States Court of Appeals for the Second Circuit, case No. 19–1540, is hereby stayed pending further order of the Court. In addition, the application is treated as a petition for writ of certiorari, and certiorari is granted. Cases consolidated, and a total of one hour is allotted for oral argument. Cases will be set for argument in the March 2020 argument session. Reported below: No. 19–715, 940 F. 3d 710; No. 19–760, 943 F. 3d 627.

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Certiorari Dismissed

No. 19–6228. CHI *v.* STOVER ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). Reported below: 706 Fed. Appx. 835.

No. 19–6237. WATSON *v.* GODERT, WARDEN. C. A. 8th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 19M77. WASSON *v.* UNITED STATES ET AL.;

No. 19M79. ROBINSON *v.* DORE; and

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No. 19M80. *KEITA v. UNITED STATES ET AL.*; *KEITA v. CITIBANK N. A. ET AL.*; and *KEITA v. IBM ET AL.* Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 19M78. *GUERRERO HERNANDEZ v. UNITED STATES.* Motion for leave to file petition for writ of certiorari with supplemental appendix under seal denied.

No. 18–1059. *KELLY v. UNITED STATES ET AL.* C. A. 3d Cir. [Certiorari granted, 588 U.S. 919.] Motion of respondent William Baroni for divided argument granted.

No. 19–373. *WALKER v. UNITED STATES.* C. A. 6th Cir. [Certiorari granted, 589 U.S. 1066.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–655. *IN RE PATTERSON.* Petition for writ of habeas corpus denied.

No. 19–6248. *IN RE PARKS*; and

No. 19–6441. *IN RE LYNCH.* Petitions for writs of mandamus denied.

Certiorari Denied

No. 19–181. *PATTERSON v. INDIANA FAMILY AND SOCIAL SERVICES ADMINISTRATION.* Ct. App. Ind. Certiorari denied. Reported below: 119 N. E. 3d 99.

No. 19–202. *MCLEMORE v. CITY OF SHORELINE, WASHINGTON.* Sup. Ct. Wash. Certiorari denied. Reported below: 193 Wash. 2d 225, 438 P. 3d 1161.

No. 19–235. *JORDAN ET AL. v. VIRGINIA DEPARTMENT OF CORRECTIONS.* C. A. 4th Cir. Certiorari denied. Reported below: 921 F. 3d 180.

No. 19–247. *CITY OF BOISE, IDAHO v. MARTIN ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 920 F. 3d 584.

No. 19–281. *CAPITAL ASSOCIATED INDUSTRIES, INC. v. STEIN, ATTORNEY GENERAL OF NORTH CAROLINA, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 922 F. 3d 198.

No. 19–462. *A TOP NEW CASTING INC. v. BODUM USA, INC.* C. A. 7th Cir. Certiorari denied. Reported below: 927 F. 3d 486.

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No. 19–469. *HSU v. CITY OF BERKELEY, CALIFORNIA*. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari denied.

No. 19–471. *FERMIN v. PRIEST OF SAINT MARY-MARFA, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 162.

No. 19–473. *DASLER v. DASLER*. Sup. Ct. Vt. Certiorari denied.

No. 19–476. *JAIN ET VIR v. BARKER ET AL.* (Reported below: 265 So. 3d 633); and *JAIN, AS TRUSTEE, AND ITS SUCCESSORS OR SUCCESSOR TRUSTEES UNDER THE MANOHAR JAIN TRUST DATED JULY 1, 2000, ET AL. v. BAY HILL PROPERTY OWNERS ASSN., INC.* (268 So. 3d 142). Dist. Ct. App. Fla., 5th Dist. Certiorari denied.

No. 19–477. *KUROWSKI v. ESTATE OF KUROWSKI ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 649.

No. 19–483. *MARINO v. NADEL, DBA LAW OFFICES OF JEFFREY NADEL, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 763 Fed. Appx. 305.

No. 19–496. *DISH NETWORK L. L. C. v. KRAKAUER, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED*. C. A. 4th Cir. Certiorari denied. Reported below: 925 F. 3d 643.

No. 19–504. *BOWES v. MELITO ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 923 F. 3d 85.

No. 19–519. *PSARA ENERGY LTD. v. ST SHIPPING & TRANSPORT PTE. LTD. ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 771 Fed. Appx. 45.

No. 19–524. *DE LA FUENTE v. PADILLA, CALIFORNIA SECRETARY OF STATE, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 930 F. 3d 1101.

No. 19–540. *JENKINS v. CITY OF CLEVELAND, OHIO*. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-458.

No. 19–545. *COULTER v. PAULISICK ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 778 Fed. Appx. 180.

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No. 19–614. *VIZCARRA ET AL. v. ORTIZ, INDIVIDUALLY AND AS Co-SUCCESSOR IN INTEREST TO DECEDENT PENA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 450.

No. 19–617. *SUPERVILLE v. UNITED STATES.* C. A. 2d Cir. Certiorari denied. Reported below: 771 Fed. Appx. 28.

No. 19–621. *SWEENEY v. MERIT SYSTEMS PROTECTION BOARD.* C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 788.

No. 19–644. *FORD v. UNITED STATES.* C. A. 9th Cir. Certiorari denied.

No. 19–5574. *WELCH v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 188.

No. 19–6157. *BROCKINGTON v. SAUL, COMMISSIONER OF SOCIAL SECURITY.* C. A. 4th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 332.

No. 19–6239. *LAWS v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied.

No. 19–6245. *WILKINS, AKA BROWN v. STANISLAUS COUNTY, CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 739.

No. 19–6250. *FATHER v. MATERNAL GRANDPARENTS.* Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2017-Ohio-9165.

No. 19–6257. *LOVETT v. TEXAS.* Ct. Crim. App. Tex. Certiorari denied.

No. 19–6259. *CHRICHLow v. METZGER, WARDEN, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–6281. *SANDERS v. OBAMA ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–6411. *BAREFIELD v. ARKANSAS.* Sup. Ct. Ark. Certiorari denied. Reported below: 2019 Ark. 149, 574 S. W. 3d 142.

No. 19–6438. *TAPIA-FIERRO v. BARR, ATTORNEY GENERAL, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 634.

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No. 19–6442. *YEAGER v. NATIONAL PUBLIC RADIO ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 1030.

No. 19–6581. *LEON v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 924 F. 3d 1021.

No. 19–6600. *DAVIS v. UNITED STATES.* C. A. 5th Cir. Certiorari denied.

No. 19–6601. *BATTLE v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 927 F. 3d 160.

No. 19–6602. *ACKIES v. UNITED STATES.* C. A. 1st Cir. Certiorari denied. Reported below: 918 F. 3d 190.

No. 19–6606. *ROOT v. UNITED STATES.* C. A. 2d Cir. Certiorari denied. Reported below: 777 Fed. Appx. 536.

No. 19–6610. *ALBERTO RUBI v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 865.

No. 19–6615. *JOHNSON v. UNITED STATES.* C. A. 5th Cir. Certiorari denied.

No. 19–6616. *MAGI v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 324.

No. 19–6619. *WHITTED v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 948.

No. 19–6620. *WALDRIP v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 369.

No. 19–6621. *WALTERS v. UNITED STATES.* C. A. 2d Cir. Certiorari denied. Reported below: 775 Fed. Appx. 25.

No. 19–6623. *FULTZ v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 923 F. 3d 1192.

No. 19–6626. *DODSON v. UNITED STATES* (Reported below: 775 Fed. Appx. 442); *SIX v. UNITED STATES* (775 Fed. Appx. 443); *WILLIAMS v. UNITED STATES* (775 Fed. Appx. 449); *GIBSON, AKA WORTH v. UNITED STATES* (775 Fed. Appx. 446); *BOLDUAN v. UNITED STATES* (775 Fed. Appx. 455); and *ENGLEHART v. UNITED STATES* (772 Fed. Appx. 722). C. A. 10th Cir. Certiorari denied.

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No. 19–6627. *WILLIAMSON v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6635. *BOROWSKI v. BECHELLI ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 338.

No. 19–6639. *ANDREWS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 759 Fed. Appx. 197.

No. 19–6640. *BRADLEY v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 924 F. 3d 476.

No. 19–6641. *CLAYTON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 937 F. 3d 630.

No. 19–6643. *FORREST v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 934 F. 3d 775.

No. 19–6665. *KINGSBURY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 680.

No. 19–223. *SMYTH v. CONSERVATION COMMISSION OF FALMOUTH ET AL.* App. Ct. Mass. Motion of National Federation of Independent Business Small Business Legal Center et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 94 Mass. App. 790, 119 N. E. 3d 1188.

No. 19–5282. *BAXTER v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. *JUSTICE KAVANAUGH* took no part in the consideration or decision of this petition.

Rehearing Denied

No. 18–1461. *DELEBREAU v. DANFORTH ET AL.*, 589 U. S. 922;
No. 18–1472. *IN RE HADSELL*, 589 U. S. 914;
No. 18–1573. *PETKO ET AL. v. CARELTON COURTYARD*, 589 U. S. 928;

No. 18–1583. *CARTER v. UNITED STATES*, 589 U. S. 928;
No. 18–9018. *WILSON v. CITY OF CHESAPEAKE, VIRGINIA*, 589 U. S. 932;

No. 18–9134. *CLOPTON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U. S. 935;

No. 18–9147. *FLINT v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U. S. 936;